

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ROBERTO CORTOPASSI,

Plaintiff,

- against -

THE CITY OF NEW YORK,
POLICE OFFICER MINA KALDAS (shield # 30195),
POLICE OFFICER OMAR JAVED (shield # 1711),

Defendants.
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Index No. _____

Purchased 11-25-24

Plaintiff designates Kings
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
November 25, 2024



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
ROBERTO CORTOPASSI,

Plaintiff,

Index No.

Verified Complaint

- against -

THE CITY OF NEW YORK,
POLICE OFFICER MINA KALDAS (shield # 30195),
POLICE OFFICER OMAR JAVED (shield # 1711),

Defendants.

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Plaintiff ROBERTO CORTOPASSI, by his attorneys, THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the Defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff ROBERTO CORTOPASSI was a resident of the State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, the NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendant, POLICE OFFICER MINA KALDAS (shield # 30195) ("P.O. KALDAS"), was and is a police officer employed by Defendants.

5. At all times hereinafter mentioned, Defendant, POLICE OFFICER OMAR JAVED (shield # 1711)(“P.O. JAVED”) was and is a police officer employed by Defendants.

BACKGROUND

6. On September 27, 2023, at approximately 3:00 a.m., Plaintiff was shopping for food inside of a store located at 7102 New Utrecht Avenue in Kings County. At that time and place, without just cause or provocation, Defendants, including P.O. MATIAS and P.O. JAVED, grabbed Plaintiff and twisted Plaintiff’s right wrist and hand. Next, Defendants handcuffed Plaintiff and jerked Plaintiff’s shoulders in an upward direction, causing Plaintiff to experience substantial pain in his left shoulder.

7. Plaintiff repeatedly requested that, due to Plaintiff’s size and prior disabilities, the police utilize two sets of handcuffs when restraining Plaintiff’s hands behind Plaintiff’s back. The police ignored Plaintiff’s repeated requests.

8. The police arrested Plaintiff and walked Plaintiff to a police vehicle. While Plaintiff was inside of the vehicle, Plaintiff repeatedly requested that the police use two sets of handcuffs because the utilization of one set was causing Plaintiff substantial pain. The police ignored Plaintiff’s requests.

9. Plaintiff was taken to a police precinct. Plaintiff was searched and forced to remain inside of a holding cell.

10. Plaintiff requested medical attention given that the police injured Plaintiff’s right wrist, right hand, neck and left shoulder. The police ignored Plaintiff’s request for medical attention.

11. While Plaintiff was at the police precinct, a police officer directed that Plaintiff be immediately released from custody. The officer conceded that the police arrested the “wrong person”.

12. Plaintiff was released from custody and immediately taken by ambulance to a local hospital to be treated for his injuries.

PROCEDURAL POSTURE

13. On December 19, 2023, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendants of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

14. More than thirty days have elapsed since service of said notices and Defendant CITY has failed to pay or adjust these claims.

15. A 50-H hearing has been held for Plaintiff.

16. This action has been commenced within one year and ninety days after the cause of action accrued.

17. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

18. Paragraphs 1-17 are incorporated by reference as fully set forth herein.

19. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 6-12, and Plaintiff did not consent to that arrest or confinement.

20. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

21. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained physical

injuries including substantial pain to his left shoulder, neck, right wrist and right hand. Plaintiff also sustained a denial of liberty, emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: BATTERY

22. Paragraphs 1-21 are incorporated by reference as though fully set forth herein.

23. When the Defendants, including P.O. KALDAS and P.O. JAVED, grabbed Plaintiff, twisted Plaintiff's right wrist and hand, handcuffed Plaintiff, and jerked Plaintiff's shoulder in an upward direction, they subjected Plaintiff to a harmful or offensive bodily contact. P.O. KALDAS and P.O. JAVED intended to make that contact without the consent of Plaintiff.

24. As a result of being battered by the Defendants, including P.O. KALDAS and P.O. JAVED, Plaintiff sustained physical injuries including substantial pain to his left shoulder, neck, right wrist and right hand. Plaintiff also sustained emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

THIRD CAUSE OF ACTION: ASSAULT

25. Paragraphs 1-24 are incorporated by reference as though fully set forth herein.

26. When the Defendants, including P.O. KALDAS and P.O. JAVED, grabbed Plaintiff, twisted Plaintiff's wrist and hand, handcuffed Plaintiff and jerked Plaintiff's shoulder in an upward direction, they placed Plaintiff in apprehension of imminent harmful or offensive contact.

27. As a result of being assaulted by the Defendants, including P.O. KALDAS and P.O. DOE, Plaintiff sustained multiple injuries, including substantial pain to his left shoulder, neck, right wrist and right hand. Plaintiff also sustained emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with punitive damages.

Dated: Bronx, NY
November 25, 2024

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiffs

888 Grand Concourse, Suite 1H

Bronx, NY 10451

(212) 939-7251

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ROBERTO CORTOPASSI,

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THE CITY OF NEW YORK,
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Defendants.

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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
November 25, 2024


ELLIOT S. KAY